



Parasha Devarim – Let's Make Justice Blind

(Deuteronomy 1:1-3:22)

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At the point in the journey described in the opening of the book of Devarim (known in English as Deuteronomy, from the Greek word *Deuteronomion*, meaning "second law"), Moshe began recounting the series of events from the time of Matan Torah at Horeb. He now addresses the children of that generation of Yisrael who left Mitzrayim. The parasha proceeds to recount the establishment of a unanimous agreement for a governmental system in which all strata of the kahal would be involved. The parasha then reminds us that one of the Torah's main pillars is an accessible and fair judicial system, governed by law without the need for any monarchical authority.

The Hebrew word for judges/magistrates (*Shofetim*) is derived from its root שָׁפַט (*shofet*), which means to judge or govern. Shofetim were interspersed throughout the population, attending to day-to-day cases (disputes, appeals and criminal matters, etc.) in accordance with their training level. They were to be found in all segments of the community (their aggregated numbers matching the communal size) providing attention to all matters for kahal cohesiveness, harmony, security, and other essential functions. Some were even trained in areas of military science and battlefield jurisprudence. This provided a complete governance typology, which scholars would later call Kritarchy – a state governed solely by laws.

We, however, know that human civilization from the dawn of creation has always sought to establish some rudimentary systems of rules. Additionally, if a civilization/kingdom endured long enough, its system of laws might exhibit a more developed structure with clearly defined judicial tiers and channels of access. The land of Egypt was known to have its legislative code of *Ma'at*, yet its penal code placed its Pharaohs and rulers in the realm of the untouchable. Additionally, its treatment of those who did not originally have genealogical affinity to the land was quite different from how it treated its citizens, and we read in Exodus 5:15 “*Then the overseers of the Israelites came to Pharaoh and cried: “Why do you deal thus with your servants?”*” Similarly, the land of Sumer (Sumerians) had their legislative code (*Ur-Nammu*), and later, the Amorites developed the *Hammurabi's Code*. What is known of these impressive codes is that their penal systems varied based on one's social status: slaves, free men, and property owners, and so forth, placing some citizens in the rungs of the untouchables.

The Hebrew word *shofet* likely came from the *Phoenician-Canaanite* people who had lived in the Levant. Hence, it should not come as a surprise that the Phoenician-Canaanite kingdom, sitting so close to others with developed legislative codes and penal systems, would likewise

have had their own. Archaeological findings of the Ras Shamra tablets in the area, written in Ugaritic script (dated within the same overlapping period as the Exodus) and their deciphering provided additional insight into the Canaanite governance system. The *Ras Shamra tablets* provided a robust judicial system very similar in many ways to what we now have today, where it appears the accused was considered innocent until proven guilty. The Ugarit king, however, was ultimately their Supreme Court, the final arbiter, sitting above but untouchable himself to the penal code. Many other codes existed in the Fertile Crescent and beyond, such as Harem Regulations, Neo-Babylonian Laws and Hittite Laws, among others. All these codes sought to establish some form of governmental order, which they may have achieved to varying degrees (depending on whom the respondents were, we are sure). Unlike the Torah, the codes mentioned here had the common elements, such as the religious, military, and noble classes being largely untouchables to their penal codes.

What makes the Torah given at Sinai important is that this legislative blueprint was given to Yisrael without any of the flaws that civilizations generally need to correct over time. Thus, *Matan Torah* provided a legal *writ*, which at its very primal genesis is complete – lacking the need for years of hearings, committee sittings, applied test cases and amendments. This document was provided to Yisrael as mere *custodians*, not to be locked away but applied in practice so the whole human race could see a workable, doable legislative system of adjudication in action and they too could copy. In this way, the Torah would spread not only from a religious perspective but also as a model of *G-dly justice*.

This vision of Torah justice is still possible, where we become a nation driven in compassion, for justice, and fairness, blind only to preferential treatment and bribery. This remains the central mission of each Jew, regardless of our job descriptions or roles, even if we are not lawyers or judges. We each must find that segment of our lives where we can apply the concept of the Torah and compassion for justice in the service of Yisrael and humanity. The concept presented by the Torah as it reads in Devarim 1: 16-17, still holds for today:

*“I charged **your magistrates** at that time as follows, “Hear out your fellow Israelites, and decide justly between one party and the other—be it a fellow Israelite or a stranger. You shall not be partial in judgment: hear out low and high alike. Fear neither party, for judgment is God’s...”*